

BEFORE THE STATE OF FLORIDA
DEPARTMENT OF ENVIRONMENTAL PROTECTION

STATE OF FLORIDA DEPARTMENT
OF ENVIRONMENTAL PROTECTION

IN THE DIVISION OF WATER
RESOURCE MANAGEMENT

Complainant,

OGC FILE NO. 24-1876

vs.

BAXTER DOROTHY A TRUST ESTATE,
BAXTER'S ASPHALT & CONCRETE, INC., AND DOLOMITE, INC.

Respondents,

_____ /

CONSENT ORDER

This Consent Order ("Order") is entered into between the State of Florida Department of Environmental Protection ("Department") and Baxter Dorothy A Trust Estate ("Baxter Trust"), Baxter's Asphalt & Concrete, Inc. ("Baxter Concrete"), and Dolomite, Inc. ("Dolomite"), cumulatively "Respondents," to reach settlement of certain matters at issue between the Department and the Parties.

The Department finds and Respondents admit the following:

1. The Department is the administrative agency of the State of Florida having the power and duty to protect Florida's air and water resources and to administer and enforce the provisions of Chapters 373, 378, and 403, Florida Statutes ("F.S."), and the rules promulgated and authorized in Title 62, Florida Administrative Code ("F.A.C."). The Department has jurisdiction over the matters addressed in this Order.

2. Dolomite is a Florida for-profit corporation which operates a limestone mine commonly known as Rocky Creek Mine, ("Facility"). The Facility is located in Jackson County, described as Parcel Numbers 18-3N-09-0000-0010-0010, 13-3N-09-0000-0040-0000, 19-3N-09-0000-0020-0010, 17-3N-09-0000-0020-0010, 17-3N-09-0000-0030-0020, and 18-3N-09-0000-0060-0000. The Department has assigned Site Number MMR_215039 to the

Facility.

3. Baxter Concrete is a Florida for-profit corporation which owns a portion of the Facility. The Baxter Trust owns another portion of the Facility.

4. Respondents are a "person" within the meaning of sections 376.301(29) and 403.031(5), F.S.

5. On May 16, 2023, the Department conducted a file review and inspection at the Facility. The Department determined that Respondents failed to obtain a required Environmental Resource Permit (permit) before construction or modification of a stormwater management system, in violation of section 373.413(2), F.S., and Rule 62-330.020(2), F.A.C. To date, Respondents have not filed a permit application with the Department for the Facility.

6. On May 3, 2024, the Department conducted a follow-up file review and inspection at the Facility. The Department determined that Respondents failed to obtain a permit before dredging or filling in, on, or over wetlands or other surface waters at the Facility, in violation of Section 373.413(2), F.S., and Rule 62-330.020(2)(a), F.A.C.

7. The impacts to wetlands consist of approximately 0.55 acres of stream hardwood and 0.05 acres of herbaceous wetland, totaling 0.09 Functional Loss units under the Uniform Mitigation Assessment Method. To date, Respondents have not filed an Environmental Resource Permit application with the Department for the Facility.

Having reached a resolution of the matter Respondents and the Department mutually agree and it is

ORDERED:

8. Respondents shall maintain site access and afford site access to the Department to the Facility until all terms of the Order have been satisfied.

9. Respondents shall comply with the following corrective actions within the stated time periods:

- a) Respondents shall immediately cease all mining related activities at the Facility. Respondents shall install Best Management Practices ("BMPs") and stormwater management features to ensure containment of stormwater on site during future operations. Upon completion of the installation of BMPs and stormwater management features at the Facility, Respondents shall arrange an inspection with

the Department and submit photo documentation of completed activities.

- b) Upon written approval from the Department of the installation of BMPs and stormwater management features, Respondents may continue interim mining activities in areas disturbed prior to October 1, 2007, and areas described below where sufficient real property interest in accordance with Section 4.2.3(d) of the Applicants Handbook has been obtained by the Respondents. Interim work is approved for the approximate 14.5 acres in the northwest corner of parcel 18-3N-09-0000-0010-0010, disturbed by mining activities after October 1, 2007, (as seen in "Attachment A"). All activities shall include setbacks from Wetlands and Other Surface Waters (OSWs) of at minimum 25ft, including BMPs. All activities conducted shall meet the applicable conditions for issuance under Rule 62-330.301, F.A.C.
- c) Within 90 days of the Effective Date of this Order, Respondents shall submit a draft environmental resource permit application (Application) pursuant to Chapter 373, F.S., to the Department's Mining and Mitigation Program for review.
- d) Within 60 days of the Department's response to the draft environmental resource permit application described in subparagraph 7(c), Respondents will submit a formal environmental resource permit application, including a mitigation plan for the impacts described in Paragraph 5 of this order.
- e) Within 365 days of the Effective Date of this Order, Respondents shall have obtained an environmental resource permit from the Department, or operations at the facility shall cease until the proper authorizations are obtained from the Department for the mining activities described in paragraph 5 of this Order.
- f) The Respondents shall respond to all Department comments on the Application within 45 days of receipt of any Requests for Additional Information.

10. Any non-compliance with the requirements of this order is subject to termination of this Order, which includes immediate revocation of the interim mining authorization provided above. Upon written notification from the Department, Respondents shall cease all mining activities until a permit is obtained.

11. Within 30 days of the Effective Date of this Order, Respondents shall pay the

Department \$9,500 in settlement of the regulatory matters addressed in this Order. This amount includes \$9,000 for civil penalties and \$500 for costs and expenses incurred by the Department during the investigation of this matter and the preparation and tracking of this Order. The civil penalties are apportioned as follows:

- a) \$4,500 for violation of Rule 62-330.020(2), F.A.C., Section 373.413(2), F.S., and Section 403.161(1)(b), F.S., for failure to obtain a required permit before construction.
- b) \$4,500 for violation of Rule 62-330.020(2), F.A.C., Section 373.413(2), F.S., and Section 403.121(3)(c), F.S., for unpermitted/unauthorized dredging/filling of wetlands or other surface waters.

12. Respondents agree to pay the Department stipulated penalties in the amount of \$100 per day for each and every day for the first two weeks, and then \$250 per day for each and every day thereafter, in which Respondents fail to timely comply with any of the requirements of paragraph(s) 8 through 9 of this Order. The Department may demand stipulated penalties at any time after violations occur. Respondents shall pay stipulated penalties owed within 30 days of the Department's issuance of written demand for payment, and shall do so as further described in paragraph 13, below. Nothing in this paragraph shall prevent the Department from filing suit to specifically enforce any terms of this Order. Any stipulated penalties assessed under this paragraph shall be in addition to the civil penalties agreed to in paragraph 8 of this Order.

13. Respondents shall make all payments required by this Order by cashier's check, money order, or on-line payment. Cashier's check or money order shall be made payable to the "Department of Environmental Protection" and shall include both the OGC number assigned to this Order (24-1876) and the notation "Water Quality Assurance Trust Fund." Online payments by e-check can be made by going to the DEP Business Portal at:

<http://www.fldepportal.com/go/pay/>. It will take a number of days after this order becomes final, effectively, and filed with the Clerk of the Department before ability to make online payment is available.

14. Except as otherwise provided, all submittals and payments required by this Order shall be sent to Marisa Rhian, Program Administrator, Department of Environmental Protection, Mining and Mitigation Program, 2600 Blair Stone Road, MS 3577, Tallahassee, Florida 32399, MiningAndMitigation@FloridaDEP.gov.

15. Respondents shall allow all authorized representatives of the Department access to the Facility at reasonable times upon reasonable notice to Respondents for the purpose of determining compliance with the terms of this Order and the rules and statutes administered by the Department.

16. In the event of a sale or conveyance of the Facility or of the Property upon which the Facility is located, if all of the requirements of this Order have not been fully satisfied, Respondents shall, at least 30 days prior to the sale or conveyance of the Facility or Property, (a) notify the Department of such sale or conveyance, (b) provide the name and address of the purchaser, operator, or person(s) in control of the Facility, and (c) provide a copy of this Order with all attachments to the purchaser, operator, or person(s) in control of the Facility. The sale or conveyance of the Facility or Property does not relieve Respondents of the obligations imposed in this Order.

17. If any event, including administrative or judicial challenges by third parties unrelated to Respondents, occurs which causes delay or the reasonable likelihood of delay in complying with the requirements of this Order, Respondents shall have the burden of proving the delay was or will be caused by circumstances beyond the reasonable control of Respondents and could not have been or cannot be overcome by Respondents' due diligence. Neither economic circumstances nor the failure of a contractor, subcontractor, materialman, or other agent (collectively referred to as "contractor") to whom responsibility for performance is delegated to meet contractually imposed deadlines shall be considered circumstances beyond control of Respondents (unless the cause of the contractor's late performance was also beyond the contractor's control). Upon occurrence of an event causing delay, or upon becoming aware of a potential for delay, Respondents shall notify the Department by the next working day and shall, within seven calendar days, notify the Department in writing of (a) the anticipated length and cause of the delay, (b) the measures taken or to be taken to prevent or minimize the delay, and (c) the timetable by which Respondents intends to implement these measures. If the parties can agree that the delay or anticipated delay has been or will be caused by circumstances beyond the reasonable control of Respondents, the time for performance hereunder shall be extended. The agreement to extend compliance must identify the provision or provisions extended, the new compliance date or dates, and the additional measures Respondents must take to avoid or minimize the delay, if any. Additionally, the Department may agree to extend the time for

performance under the provision or provisions of this Order for any reason, such as good faith by the Respondents. Failure of Respondents to comply with the notice requirements of this paragraph in a timely manner constitutes a waiver of Respondents' right to request an extension of time for compliance for those circumstances.

18. The Department, for and in consideration of the complete and timely performance by Respondents of all the obligations agreed to in this Order, hereby conditionally waives its right to seek judicial imposition of damages or civil penalties for alleged violations up to the date of the filing of this Order. This waiver is conditioned upon respondents' complete compliance with all of the terms of this Order.

19. This Order is a settlement of the Department's civil and administrative authority arising under Florida law to resolve the matters addressed herein. This Order is not a settlement of any criminal liabilities which may arise under Florida law, nor is it a settlement of any violation which may be prosecuted criminally or civilly under federal law. Entry of this Order does not relieve Respondents of the need to comply with applicable federal, state, or local laws, rules, or ordinances.

20. The Department hereby expressly reserves the right to initiate appropriate legal action to prevent or prohibit any violations of applicable statutes or rules promulgated thereunder that are not specifically addressed by terms of this Order.

21. Respondents is fully aware that a violation of the terms of this Order may subject Respondents to judicial imposition of damages, civil penalties up to \$15,000 per day per violation, and criminal penalties.

22. Respondents acknowledges and waives its right to an administrative hearing pursuant to Sections 120.569 and 120.57, F.S., on the terms of this Order. Respondents also acknowledges and waives its right to appeal the terms of this Order pursuant to Section 120.68, F.S.

23. Electronic signatures or other versions of the parties' signatures, such as .pdf or facsimile, shall be valid and have the same force and effect as originals. No modifications of the terms of this Order will be effective until reduced to writing, executed by both Respondents and the Department, and filed with the clerk of the Department.

24. The terms and conditions set forth in this Order may be enforced in a court of competent jurisdiction pursuant to Sections 120.69 and 403.121, F.S. Failure to comply with the

terms of this Order constitutes a violation of Section 403.161(1)(b), F.S.

25. This Consent Order is a final order of the Department pursuant to Section 120.52(7), F.S., and it is final and effective on the date filed with the Clerk of the Department unless a Petition for Administrative Hearing is filed in accordance with Chapter 120, F.S. Upon the timely filing of a petition, this Consent Order will not be effective until further order of the Department.

Persons who are not parties to this Consent Order, but whose substantial interests are affected by it, have a right to petition for an administrative hearing under Sections 120.569 and 120.57, Florida Statutes. Because the administrative hearing process is designed to formulate final agency action, the filing of a petition concerning this Consent Order means that the Department's final action may be different from the position it has taken in the Consent Order.

The petition for administrative hearing must contain all of the following information:

- a) The OGC Number assigned to this Consent Order;
- b) The name, address, and telephone number of each petitioner; the name, address, and telephone number of the petitioner's representative, if any, which shall be the address for service purposes during the course of the proceeding;
- c) An explanation of how the petitioner's substantial interests will be affected by the Consent Order;
- d) A statement of when and how the petitioner received notice of the Consent Order;
- e) Either a statement of all material facts disputed by the petitioner or a statement that the petitioner does not dispute any material facts;
- f) A statement of the specific facts the petitioner contends warrant reversal or modification of the Consent Order;
- g) A statement of the rules or statutes the petitioner contends require reversal or modification of the Consent Order; and
- h) A statement of the relief sought by the petitioner, stating precisely the action petitioner wishes the Department to take with respect to the Consent Order.

The petition must be filed (received) at the Department's Office of General Counsel, 3900 Commonwealth Boulevard, MS# 35, Tallahassee, Florida 32399-3000 or received via electronic correspondence at Agency_Clerk@floridadep.gov, within 21 days of receipt of this notice. A copy

of the petition must also be mailed at the time of filing to the Division Office at 2600 Blair Stone Road, MS 3500, Tallahassee, Florida 32399. Failure to file a petition within the 21-day period constitutes a person's waiver of the right to request an administrative hearing and to participate as a party to this proceeding under Sections 120.569 and 120.57, F.S. Before the deadline for filing a petition, a person whose substantial interests are affected by this Consent Order may choose to pursue mediation as an alternative remedy under section 120.573, F.S. Choosing mediation will not adversely affect such person's right to request an administrative hearing if mediation does not result in a settlement. Additional information about mediation is provided in Section 120.573, F.S. and Rule 62- 110.106(12), Florida Administrative Code.

26. Rules referenced in this Order are available at
<https://floridadep.gov/ogc/ogc/content/rules>.

27. The undersigned certifies that he [or she] NAME, is authorized and empowered to negotiate, enter into, and execute, in the name and on behalf of the Respondents, any agreements, documents, instruments, and certificates involving and including this Order entered into between Respondents and the Department without limitation.

FOR THE RESPONDENT, Baxter Dorothy A Trust Estate:



Date: 06/07/2024

Name: Kathy Sloan

Title: Trustee

FOR THE RESPONDENT, Baxter's Asphalt & Concrete, Inc.:

David M. Sloan

Date: 04/07/2024

Name: David M. Sloan

Title: President

FOR THE RESPONDENT, Dolomite, Inc.:

David M. Sloan

Date: 06/07/2024

Name: David M. Sloan

Title: President

DONE AND ORDERED this 11th day of June, 2024, in Leon County, Florida.

STATE OF FLORIDA DEPARTMENT
OF ENVIRONMENTAL PROTECTION



Matthew Knoll
Deputy Director
Division of Water Resource Management

Filed, on this date, pursuant to section 120.52, F.S., with the designated Department Clerk,
receipt of which is hereby acknowledged.



Clerk

June 12, 2024

Date

Copies furnished to:
Lea Crandall, Agency Clerk
Mail Station 35

Rocky Creek Mine Attachment A

Mining activity is approved inside the yellow 2007 boundary except for areas outlined in pink. Area outlined in green is additional area outside the 2007 boundary that is approved for mining activity as outlined in the Consent Order.

Legend

-  2007 Grandfathered Boundary
-  Additional Area Approved by Consent Order
-  Not approved for Activity

Rocky Creek

Dolomite

